

		A Final Approval Hearing is set for February 1, 2027 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs' declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to give notice of this ruling to Defendant.
8	30-2024-01390734 Welton vs. Cerna Healthcare, LLC	Plaintiffs Juliet Welton, Brandi Gregg, and Cindy Estrada Rosas' (collectively, "Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement is GRANTED. A Final Approval Hearing is set for February 1, 2027 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiffs' attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs' declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendant.
9	30-2024-01439280 Espina vs. J & E Hospitality Group Inc.	Counsel Jorge Ledezma of Ledezma Law, APLC's ("Counsel") Motion to Be Relieved as Counsel for Defendant Edgar Estrada Galindo ("Galindo") is GRANTED. (CCP § 284(2).) Counsel has complied with the requirements of CRC Rule 3.1362. IT IS ORDERED THAT within five (5) days of this ruling, Counsel shall provide the court with a new [Proposed] Order that states that the next scheduled hearing is on October 20, 2026 at 9:00 A.M. for an Order to Show Cause why Defendants J&E, Taste, Sol Agave, and Prime's Answer should not be stricken due to the fact that these defendants are corporations but do not have an attorney of record. IT IS FURTHER ORDERED THAT Notice of Entry of Order and Proof of Service must be filed by Counsel. Counsel remains counsel for Galindo until Proof of Service upon Galindo is filed.

		Counsel is ordered to give notice of the ruling.
10	30-2025-01522081 Shumard vs. Boot Barn Holdings, Inc.	Defendant Boot Barn Inc.’s (“Defendant”) Demurrer to Plaintiff Mike Shumard’s (“Plaintiff”) First Amended Class Action Complaint (“FAC”) is OVERRULED. IT IS ORDERED THAT Defendant file an answer to Plaintiff’s FAC within fourteen (14) days of this ruling. In this action, Plaintiff alleges a single class action claim against Defendant for violation of Cal. Pen. Code § 632.7, which makes it unlawful to “intercept[] or receive[] and intentionally record[] . . . a communication transmitted between two cellular radio telephones, a cellular radio telephone and a landline telephone, two cordless telephones, a cordless telephone and a landline telephone, or a cordless telephone and a cellular radio telephone [without the consent of all of the parties to a communication][.]” Cal. Pen. Code § 637.2(a) states: “Any person who has been injured by a violation of this chapter may bring an action against the person who committed the violation for the greater of the following amounts: (1) Five thousand dollars (\$5,000) per violation[;] [or] (2) Three times the amount of actual damages, if any, sustained by the plaintiff.” Further, “[a]ny person may . . . bring an action to enjoin and restrain any violation of this chapter, and may in the same action seek damages[.]” (Cal. Pen. Code § 637.2(b).) “It is not a necessary prerequisite to an action pursuant to this section that the plaintiff has suffered, or be threatened with, actual damages.” (Cal. Pen. Code § 637.2(c).) Plaintiff alleges that “[i]n or about early September or late August, 2025, Plaintiff called the Boot Barn customer service number, 888-440-2668, and spoke with a Boot Barn customer service representative.” (FAC ¶ 12.) “Plaintiff’s telephone call to Defendant’s customer service was made while Plaintiff was in California using a cellular telephone with a California area code.” (<i>Id.</i> ¶ 16.) “Plaintiff is informed and believes and thereon alleges, that the customer service representative who answered his call was also using a Telephonic Communication System Device,” which is defined as one of the enumerated devices identified in Cal. Pen. Code § 632.7. (<i>Id.</i> ¶¶ 3, 16.) Plaintiff alleges that “Defendant knowingly violated Section 632.7 by intentionally recording calls with California residents using Telephonic